

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kelly Lyon	Team: Squad #11	CCRB Case #: 202307476	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 08/08/2023 11:19 PM	Location of Incident: East 165th Street and Trinity Avenue	18 Mo. SOL 2/8/2025	Precinct: 42		
Date/Time CV Reported Wed, 08/09/2023 6:10 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/09/2023 6:10 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Bory Echanique	05252	958540	PBBX SU PST
2. PO Philip Bouchet	07659	963407	PBBX SU PST
3. SGT Michael Monahan	02311	955210	PBBX SU PST
4. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . SGT Michael Monahan	Abuse: Sergeant Michael Monahan stopped the vehicle in which § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants.	A . Within NYPD Guidelines
B . An officer	Abuse: An officer questioned § 87(2)(b)	B . Unfounded
C . PO Philip Bouchet	Abuse: Police Officer Philip Bouchet frisked § 87(2)(b)	C . Miscellaneous - Subject Terminated
D . PO Philip Bouchet	Abuse: Police Officer Philip Bouchet searched § 87(2)(b)	D . Miscellaneous - Subject Terminated
E . SGT Michael Monahan	Abuse: Sergeant Michael Monahan questioned § 87(2)(b)	E . Substantiated
F . SGT Michael Monahan	Abuse: Sergeant Michael Monahan frisked § 87(2)(b)	F . Substantiated
G . SGT Michael Monahan	Abuse: Sergeant Michael Monahan questioned § 87(2)(b)	G . Substantiated
H . SGT Michael Monahan	Abuse: Sergeant Michael Monahan frisked § 87(2)(b)	H . Substantiated
I . DTS Bory Echanique	Abuse: Detective Bory Echanique questioned § 87(2)(b)	I . Unable to Determine
J . DTS Bory Echanique	Abuse: Detective Bory Echanique frisked § 87(2)(b)	J . Unable to Determine
K . DTS Bory Echanique	Abuse: Detective Bory Echanique searched § 87(2)(b)	K . Unable to Determine
L . PO Philip Bouchet	Abuse: Police Officer Philip Bouchet failed to provide § 87(2)(b) with a business card.	L . Miscellaneous - Subject Terminated

Officer(s)	Allegation	Investigator Recommendation
M . SGT Michael Monahan	Abuse: Sergeant Michael Monahan failed to provide § 87(2)(b) with a business card.	M . Substantiated
N . SGT Michael Monahan	Abuse: Sergeant Michael Monahan failed to provide § 87(2)(b) with a business card.	N . Substantiated
O . SGT Michael Monahan	Abuse: Sergeant Michael Monahan failed to provide § 87(2)(b) with a business card.	O . Substantiated
P . DTS Bory Echanique	Abuse: Detective Bory Echanique failed to provide § 87(2)(b) with a business card.	P . Within NYPD Guidelines
Q . DTS Bory Echanique	Abuse: Detective Bory Echanique failed to provide § 87(2)(b) with a business card.	Q . Substantiated

Case Summary

On August 9, 2023, § 87(2)(b) filed this complaint on behalf of her 16-year-old son, § 87(2)(b) and his friends § 87(2)(b), § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not cooperate with providing the full names or contact information for any of the friends he was with during this incident.

On August 8, 2023, at approximately 11:19 p.m., § 87(2)(b) was in the backseat of a rideshare vehicle, driven by § 87(2)(b) with his friends § 87(2)(b), § 87(2)(b) and § 87(2)(b) when Sgt. Michael Monahan, PO Philip Bouchet, and Det. Bory Echanique of Patrol Brough Bronx Specialized Unit Public Safety Team pulled them over in the vicinity of East 165th Street and Trinity Avenue in the Bronx (**Allegation A: Abuse of Authority, within NYPD guidelines**). An officer allegedly asked § 87(2)(b) whether she had any weapons (**Allegation B: Abuse of Authority, unfounded**). PO Bouchet allegedly frisked § 87(2)(b) and searched her purse (**Allegations C and D: Abuse of Authority, miscellaneous – subject terminated**). Sgt. Monahan asked § 87(2)(b) and § 87(2)(b) whether they had any weapons and frisked them (**Allegations E, F, G, and H: Abuse of Authority, substantiated**). PO Echanique questioned § 87(2)(b) on whether he had anything sharp on him (**Allegation I: Abuse of Authority, unable to determine**). PO Echanique frisked § 87(2)(b) and allegedly searched his backpack (**Allegations J and K: Abuse of Authority, unable to determine**). None of the occupants were provided with a business card (**Allegation L: Abuse of Authority, miscellaneous – subject terminated, Allegations M, N, and O: Abuse of Authority, substantiated, Allegation P: Abuse of Authority, within NYPD guidelines, and Allegation Q: Abuse of Authority, substantiated**).

This incident resulted in no summonses or arrests.

The investigation obtained three redacted boy-worn camera videos of the incident (**BR 01: videos, BR 02 – BR 04: summaries**) and one cellphone video (**BR 05**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Michael Monahan stopped the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) stated (**BR 06**) that he and his friends were in an Uber that was requested by § 87(2)(b) when they were stopped for not wearing their seatbelts. The investigation identified the driver to be § 87(2)(b) however, § 87(2)(b) was unavailable to provide a statement to the investigation. Records were requested from Uber by means of subpoena and Uber was unable to provide any information about the ride (**BR 07**).

Sgt. Monahan's body-worn camera (**BR 08**) shows from 1:03 minutes to 1:34 minutes, Sgt. Monahan conversing with the driver, § 87(2)(b) in Spanish. Sgt. Monahan tells § 87(2)(b) in Spanish, "I don't know what happened with that turn that you made back there," and § 87(2)(b) explains that the passenger sitting behind him told him to make the turn really quickly.

Sgt. Monahan stated (**BR 09**) that he observed § 87(2)(b) abruptly make a right turn without signaling. When he approached § 87(2)(b) Sgt. Monahan mentioned the signal and § 87(2)(b) told Sgt. Monahan that one of the passengers suddenly told him to make a right turn.

New York Consolidated Laws Service Vehicle and Traffic Law § 1163(d) (BR 10) states that a signal shall be used to indicate an intention to turn.

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be closed *within NYPD guidelines*.

Allegation (B) Abuse of Authority: An officer questioned § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Philip Bouchet frisked § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Philip Bouchet searched § 87(2)(b)

§ 87(2)(b) stated (BR 06) that he and all of his friends were asked whether they had any weapons. § 87(2)(b) did not specify which officer asked the question. § 87(2)(b) also stated that § 87(2)(b) was frisked, and her purse was searched.

PO Bouchet's body-worn camera footage (BR 11) shows at 1:42 minutes, § 87(2)(b) saying, "Y'all wanna search and we can hurry up and go on with our night?" PO Bouchet says, "Step out the car then." At 1:51 minutes, § 87(2)(b) steps out of the vehicle. The footage of § 87(2)(b) is blurred; however, PO Bouchet is seen holding a handheld fan in the bottom left corner of the screen. § 87(2)(b) is then instructed to stand at the rear of the vehicle. At no point does any officer ask § 87(2)(b) whether she has a weapon.

PO Bouchet stated (BR 12) that when they approached the vehicle, he observed a lot of movement in the back of the vehicle and that the occupants were not wearing seatbelts. § 87(2)(b) bent over and popped back up. § 87(2)(b) either put something into her bag from the floor or put something from her bag onto the floor which he believed was a furtive movement and found suspicious. PO Bouchet stated it could have been a weapon but that he only suspected some type of criminality like she was trying to hide something. § 87(2)(b) offered to be searched and PO Bouchet asked her to step out of the vehicle. § 87(2)(b) got out of the vehicle and her small bag was open. There was a portable fan on top which PO Bouchet moved. PO Bouchet ruffled his fingers and looked. PO Bouchet never frisked § 87(2)(b).

According to the Department Advocate's Office, PO Bouchet was dismissed from the NYPD on April 28, 2024 (BR 13).

§ 87(2)(g) no officer is depicted on body-worn camera asking § 87(2)(b) whether she has a weapon and § 87(2)(b) § 87(2)(g) it is recommended that Allegation B be closed as *unfounded*.

§ 87(2)(g) it is recommended that Allegations C and D be closed as *miscellaneous – subject terminated*.

Allegation (E) Abuse of Authority: Sergeant Michael Monahan questioned § 87(2)(b)

Allegation (F) Abuse of Authority: Sergeant Michael Monahan frisked § 87(2)(b)

Allegation (G) Abuse of Authority: Sergeant Michael Monahan questioned § 87(2)(b)

Allegation (H) Abuse of Authority: Sergeant Michael Monahan frisked § 87(2)(b)

As discussed above § 87(2)(b) stated (BR 06) that he and his friends were asked whether they had any weapons on them and § 87(2)(b) did not specify which officer asked the question. § 87(2)(b) lifted his shirt to show he did not have anything on him. § 87(2)(b) and his friends were instructed outside of the vehicle and were frisked. The officers patted down the outside of § 87(2)(b) pockets and the groin area.

Sgt. Monahan's body-worn camera (BR 08) shows at 1:00 minute, Sgt. Monahan approaching the rideshare vehicle from the rear. At 1:42 minutes, after § 87(2)(b) offers to be searched, Sgt. Monahan says, "That's what you're trying to do?" and one of the male passengers says, "Yeah." At least two additional male voices are heard saying "I don't consent to no search." At 2:04 minutes, after § 87(2)(b) exits the vehicle, two males are again heard saying "I don't consent to no search." At 2:14 minutes, Sgt. Monahan asks § 87(2)(b) to exit the vehicle and asks if he has any weapons on him to which § 87(2)(b) replies, "No." A frisk appears to occur however the redaction does not clearly depict where the frisking takes place. At 2:38 minutes, Sgt. Monahan asks § 87(2)(b) if he has any weapons on him and he says, "Nope." A frisk appears to occur however the redaction does not clearly depict where the frisking takes place.

Sgt. Monahan (BR 09) observed four passengers in the back seat. From right to left Sgt.

Monahan observed heads go down, back, and forth, and shoulders shifting as if something was getting passed from one side of the cab to the other. Sgt. Monahan did not observe this from the passenger on the far right. Sgt. Monahan's attention shifted from the Vehicle and Traffic Law violation to suspecting that there might be some contraband, or a weapon being shuffled or trying to be concealed in the back of the cab. Sgt. Monahan's suspicion was based on his training and experience in these situations. There was no other reason for believing the passengers could have a weapon.

The passenger on the far left, § 87(2)(b) suggested that the officers either search them or the vehicle and PO Bouchet said, "Okay, we'll do that," and the determination was made to have the passengers exit the vehicle. Sgt. Monahan heard a voice go along with the first passenger's offer to be searched and another passenger stated he did not consent to the search. Sgt. Monahan could not pinpoint who said what at that point.

After § 87(2)(b) two more passengers exited through the rear driver's side, identified by the investigation as § 87(2)(b) and § 87(2)(b) and Sgt. Monahan asked them whether they had any weapons. Sgt. Monahan asked just to get a better assessment as sometimes people admit it. Sgt. Monahan frisked the waistband and pants pockets areas of their bodies where he believed a possible weapon could have been. Sgt. Monahan explained that he performed the frisk due to his previously mentioned observations he believed one of the passengers, excluding the right most passenger, could have concealed a weapon.

In People v. Garcia, 20 N.Y.3d 317 (2012) (BR 14) the court found that that passenger acting "a little furtive," "looking behind," and stiffening up upon officers' approach or making furtive movements and acting nervous does not rise to founded suspicion of criminality, and second, that without founded suspicion of criminality, an officer may not ask an individual if they are in possession of a weapon.

In People v. Allen, 42 A.D.3d 331(2007) (BR 15) as the officer approached the vehicle, he saw the defendant, who was the passenger, and the other occupant of the car bend over and appear to pass something between them. Defendant then quickly put his hands in his pockets. In addition, he was visibly nervous in that his hand shook as he handed the officer his identification. This flurry of furtive, suspicious conduct gave the officer a reasonable suspicion that defendant might be concealing a weapon, thereby justifying a frisk.

§ 87(2)(g)
body-worn camera footage showed that he was not in a position to see what if anything was passed between passengers since he approached the vehicle from behind, § 87(2)(g)

Therefore, it is recommended that **Allegations E, F, G, and H** be *substantiated*.

Allegation (I) Abuse of Authority: Detective Bory Echanique questioned § 87(2)(b)

Allegation (J) Abuse of Authority: Detective Bory Echanique frisked § 87(2)(b)

Allegation (K) Abuse of Authority: Detective Bory Echanique searched § 87(2)(b)

As previously mentioned, § 87(2)(b) (BR 06) stated that officers asked his friends whether they had any weapons on them. § 87(2)(b) did not specify which officer asked the question. An officer also frisked § 87(2)(b) and searched § 87(2)(b) backpack.

Det. Echanique's body-worn camera (BR 16) shows at 3:00 minutes, Det. Echanique asking § 87(2)(b) to exit the vehicle. At 3:10 minutes, Det. Echanique asks § 87(2)(b) why he is so nervous and whether he has anything sharp on him. § 87(2)(b) says he has his phone on him, and Det. Echanique asks if there is a reason why he is shaking. Det. Echanique appears to frisk § 87(2)(b) waist and legs; however, it is unclear with the redaction. Det. Echanique interacts with § 87(2)(b) backpack and there are audible sounds as he makes contact with it; however, it is unclear with the

redaction the extent of the interaction. At no point does any officer ask § 87(2)(b) whether he has a weapon.

Det. Echanique (BR 17) stated that as he approached the cab, there was a lot of movement inside, there were four passengers in the rear moving from door to door, reaching over each other's head, behind where the seatbelts hang, heads were bobbing toward the floor. In Det. Echanique's experience, all that movement could be indicative that something could be going on, some type of criminality, such as concealing a weapon or a narcotic. In this case, Det. Echanique thought it could be a weapon because the occupants were so nervous, looking over their shoulders, and reaching. The individual Det. Echanique interacted with, identified by the investigation as § 87(2)(b) was visibly nervous and pressed up hard against the seat in the area where Det. Echanique saw the passengers reaching over him. In Det. Echanique's experience, an occupant pressed up against the seat could be concealing a bulge, firearm, or knife. Det. Echanique asked § 87(2)(b) for his name, and he was dumbfounded. § 87(2)(b) kept his hands very close to his body on one side of his backpack which was protruding out the side.

§ 87(2)(b) exited the vehicle last and appeared to rearrange the object in his backpack again and Det. Echanique told him to keep his hands up and asked whether he had anything sharp given the readjustments he was doing. Given § 87(2)(b) nervousness and movements, Det. Echanique thought he could be concealing a weapon. It was also a high crime area particularly for gun violence. Det. Echanique patted down § 87(2)(b) waist and pant leg for his safety and for the driver's safety. Det. Echanique felt the outside of § 87(2)(b) backpack and believed there was a gaming device inside where it was protruding. Det. Echanique never opened the backpack and acknowledged that in his body-worn camera an audible crunching could be heard but that was something that was inside the bag.

In People v. Garcia, 20 N.Y.3d 317 (2012) (BR 14) the court found that that passenger acting "a little furtive," "looking behind," and stiffening up upon officers' approach or making furtive movements and acting nervous does not rise to founded suspicion of criminality, and second, that without founded suspicion of criminality, an officer may not ask an individual if they are in possession of a weapon.

In People v. Crespo, 739 N.Y.S.2d 365 (2002) (BR 18) the court's finding that the defendant's conduct after the car was stopped, consisting of adjusting his jacket away from his body while looking at the officer, gave rise to a reasonable suspicion that defendant might have been concealing a weapon.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] the redaction to the body-worn camera footage renders the footage inconclusive on this behavior. § 87(2)(g)
[REDACTED]
[REDACTED]

[REDACTED] Therefore, it is recommended that **Allegations I and J** be closed as *unable to determine*.

§ 87(2)(g)
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation K** be closed as *unable to determine*.

Allegation (L) Abuse of Authority: Police Officer Philip Bouchet failed to provide § 87(2)(b) with a business card.

Allegation (M) Abuse of Authority: Sergeant Michael Monahan failed to provide § 87(2)(b) with a business card.

Allegation (N) Abuse of Authority: Sergeant Michael Monahan failed to provide § 87(2)(b) with a business card.

Allegation (O) Abuse of Authority: Sergeant Michael Monahan failed to provide § 87(2)(b) with a business card.

Allegation (P) Abuse of Authority: Detective Bory Echanique failed to provide § 87(2)(b) with a business card.

Allegation (Q) Abuse of Authority: Detective Bory Echanique failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) stated (BR 06) stated that no one was provided with a business card. PO Bouchet's body-worn camera footage (BR 11) shows at 4:37 minutes, PO Bouchet saying, "You need a business card or something?" and no one takes him up on the offer.

Sgt. Monahan's body-worn camera (BR 08) shows at 4:44 minutes, Sgt. Monahan saying "You need anything from me before we go?" Sgt. Monahan is speaking at the same time that PO Bouchet is offering a business card.

Det. Echanique's body-worn camera (BR 16) shows at 3:48 minutes, Det. Echanique searching the back seat of the vehicle. At 4:47 minutes, Det. Echanique says, "You need a card?" while standing outside the rear passenger side window.

Sgt. Monahan (BR 09) stated that at the end of the interaction PO Bouchet offered a business card and Sgt. Monahan asked everyone if they needed anything else from him, but he did not speak over PO Bouchet to offer one himself. Sgt. Monahan did not offer anyone a business card because PO Bouchet offered one, and he had asked if anyone needed anything else from him and no one asked for anything therefore he did not provide one.

Det. Echanique (BR 17) stated that he offered § 87(2)(b) a business card by saying, "Would you like a business card?" § 87(2)(b) did not respond. Det. Echanique did not offer a business card to the driver, § 87(2)(b) as he had no interaction with him.

NYC Administrative Code § 14-174 (BR 19) states that officers are to offer a business card at the conclusion of a frisk or search of vehicle that do not result in a summons or arrest. NYPD Administrative Guide procedure 304-11 (BR 20) states that officers are to offer a business card for all stops or level three encounters that do not result in a summons or arrest.

§ 87(2)(g) it is recommended that **Allegation L** be closed as *miscellaneous – subject terminated*.

§ 87(2)(g) it is recommended that **Allegation M** be *substantiated*.

§ 87(2)(g) it is recommended that **Allegations N and O** be *substantiated*.

§ 87(2)(g) it is recommended that **Allegation P** be closed *within NYPD guidelines*.

§ 87(2)(g) body-worn camera footage shows that PO Echanique searched the vehicle § 87(2)(g) it is recommended that **Allegation Q** be *substantiated*.

Allegations Not Plead

The vehicle search was not pleaded because it was not alleged in a verified statement and not clear misconduct due to an undisputed open container in the door panel on the rear driver's side of the vehicle.

Civilian and Officer CCRB Histories

- § 87(2)(b)

§ 87(2)(b)

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- This is the first complaint to which § 87(2)(b) has been a party (BR 23).
- Sgt. Monahan has been a member of service for 10 years and named a subject in three additional CCRB complaints and five allegations, none of which were substantiated.
- PO Bouchet was terminated from the NYPD on April 28, 2024.
- Det. Echanique has been a member of service for eight years and named a subject in four additional CCRB complaints and 27 allegations, four of which were substantiated.
 - 202003263 involved a substantiated allegation of a discourteous word. The Board recommended Command Discipline A and the NYPD imposed no penalty.
 - 202004217 involved substantiated allegations of failure to provide RTKA card and frisk. The Board recommended Command Discipline A and the NYPD imposed no penalty.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of February 15, 2024, the New York City Comptroller's Office has no record of a Notice of Claim being filed regarding this incident (BR 24).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

[REDACTED]

■ [REDACTED]

■ [REDACTED]

[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 11

Investigator:	Kelly Lyon	SI Kelly Lyon	05/24/2024
	Signature	Print Title & Name	Date

Squad Leader:	Edwin Pena	IM Edwin Pena	05/24/24
---------------	------------	---------------	----------

Signature

Print Title & Name

Date

Reviewer:

Signature

Print Title & Name

Date